

		Accordingly, the motion is GRANTED. The actions are consolidated for all purposes, with Parker v. Le, et al., Case No. 2024-01447835, designated as the lead case. <u>Motion for Leave to File Second Amended Complaint</u> Plaintiff Ana Christina Parker ("Plaintiff") seeks leave to file a Second Amended Complaint. However, on the deadline for Plaintiff's reply brief, Plaintiff instead filed a Notice of Lodging and Supplemental Declaration which purports to submit a revised proposed Second Amended Complaint. The revised proposed Second Amended Complaint was not attached to the supplemental declaration or notice of lodging. Further, the notice of lodging indicates that the revised proposed SAC "add[s] limited factual allegations and related requested abatement relief based on newly discovered information concerning wall-height limitations, wall-reconstruction requirements, and the feasibility of abating ongoing noise, privacy, wall, an access-related interference." (ROA 70 ¶ 3.) The Court cannot assess the merits of the motion without a copy of the proposed pleading. Further, CRC 3.1324 requires Plaintiff to provide a declaration regarding the proposed changes, and to include a redline of the proposed pleading, none of which has been done in connection with the revised proposed SAC. Finally, submitting the revised proposed SAC after Defendants have already filed their opposition unfairly deprives Defendants of a fair opportunity to respond to the proposed pleading. For all of these reasons, the motion is DENIED without prejudice. <i>Defendants to give notice of both orders.</i>
108	The Standard Fire Insurance Company vs. Milton Roy Company, Hartell Division, 25-01473457	Plaintiff The Standard Fire Insurance Company ("Plaintiff") moves to compel Defendant Viking Range, LLC's representative Michael Lacombe to appear for a deposition. Plaintiff also asks for monetary sanctions in the amount of \$561.65 against Viking Range, LLC's attorney, Sierra J. Chinn-Liu, Esq., for the reasonable costs and fees associated with having to bring this motion. The Motion is made pursuant to Code of Civil Procedure section 2025.450, et seq. and 2023.030(a).

Defendant Viking Range, LLC ("Defendant") opposes the motion.

On 08/13/2026, the Court held a hearing on this motion. The Court ordered the following after the hearing:

"The Court finds that whether Mr. Lacombe signed the verification to Defendant's discovery responses is of great significance to the issues presented in this motion. However, Plaintiff has not provided any admissible evidence that Mr. Lacombe signed a discovery verification in defense of this case. Plaintiff also did not provide admissible evidence that Mr. Lacombe appeared at destructive testing on Defendant's behalf.

Plaintiff is ordered to file evidence establishing that Mr. Lacombe signed the verification on behalf of Defendant and any other evidence supporting Mr. Lacombe's role and/or responsibilities in relation to Defendant no later than 9 court days before the continued hearing. Defendant is permitted to file a 3 page reply in addition to evidence opposing Plaintiff's contentions no later than 5 court days before the continued hearing.

If Plaintiff's statement is true, that Mr. Lacombe signed the discovery verification on behalf of Defendant in defense of this case, the Court strongly encourages the parties to work together to establish a mutually agreeable date to conduct Mr. Lacombe's deposition." (ROA 111.)

On August 19, 2026, Plaintiff filed a supplemental declaration in support of the motion to compel the deposition of Michael Lacombe. In the declaration, Plaintiff's counsel attached the discovery responses provided by Defendant, which were verified by Michael Lacombe. The Court finds that such evidence supports Plaintiff's arguments that Defendant shall be required to produce Michael Lacombe for deposition.

As such, the motion to compel Defendant Viking Range, LLC's representative Michael Lacombe to appear for a deposition is GRANTED. Defendant shall produce Michael Lacombe for his deposition on a mutually agreeable date, no later than 45 days following notice of this order.

		The request for sanctions is GRANTED in the amount of \$561.65 against Defendant Viking Range, LLC and Defendant Viking Range, LLC's attorney, Sierra J. Chinn-Liu, Esq., jointly and severally. Sanctions shall be paid within 30 days after notice of this order. <i>Plaintiff to give notice.</i>
109	Jafry vs. Rowshan, 23-01348716	Defendants Zoom Business Brokers ("Zoom") and Jim Moazez ("Moazez") (collectively, "Defendants"), seek an order granting summary judgment, or alternatively, summary adjudication, of the Complaint against Plaintiff Syed Jafry, dba R & R Accounting ("Plaintiff") and in favor of Defendants. (1) The undisputed material facts show that Plaintiff cannot establish Defendants' "intent to defraud," an element of fraud, barring Plaintiff's Second Cause of Action for Fraud; (2) The undisputed material facts show that Plaintiff cannot establish Defendants' "justifiable reliance on defendant's misrepresentation," an element of fraud, barring Plaintiff's Second Cause of Action for Fraud; (3) The undisputed material facts show that Defendants' Affirmative Defense No. 25, "Release, Indemnity, and Hold Harmless," bars Plaintiff's Fourth Cause of Action of Breach of Fiduciary Duty Initially, on summary adjudication, pursuant to CRC 3.1350(b), "[T]he specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts." [CRC 3.1350(b).] Here, the Notice of Motion and Separate Statement do not match verbatim. [ROA 117, 121.] Also, the separate statement does not list the issues to be adjudicated in numerical sequence; but rather, starts at number 1 for each issue. [CRC 3.1350(h).] Nevertheless, because there are only three issues for consideration, the Court will exercise its discretion and consider each issue.